

The Mamlatdars' Courts Act, 1906

MAHARASHTRA

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Act 2 of 1906

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The Mamlatdars' Courts Act, 1906 Bombay Act No. 2 of 1906 [29th October, 1906] For Statement of Objects and Reasons, see Bombay Government Gazette, 1905, Part VII, page 520; for Report of Select Committee, see Bombay Government Gazette, 1906; Part VII, pages 31 and 189. An Act to consolidate and amend the law relating to the powers and procedure of Mamlatdars' Courts. Preamble Whereas it is expedient to consolidate and amend the law relating to the powers and procedure of Mamlatdars' Courts; it is hereby enacted as follows:-

1. Short title.

(1) This Act may be called the Mamlatdars' Courts Act, 1906, (2) [It shall extend to the whole of the [State of Maharashtra] [These sub-sections were substituted by the original sub-section (2) by Bombay 4 of 1958, Section 3(1).], except the City of Bombay.] Commencement in rest of State. (3) [In that part of the State of Bombay to which it is extended by the Mamlatdars' Courts (Extension) Act, 1957, it shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint.] [Sub-section (3) of section 1 shall stand unmodified, please see schedule to the Maharashtra Adaptation of Laws (State and Concurrent Subjects) Order, 1960.]

2. Repeal of Bombay Act III of 1876.

- The Mamlatdars' Courts Act, 1876, is hereby repealed.

3. Interpretation.

- In this Act, unless there is anything repugnant in the subject or context, -(aa) ["Collector" includes a Deputy Commissioner;] [This clause was inserted by Bombay 4 of 1958, Section 3(2)(i).] (a) the word "Mamlatdar" shall include any Revenue-officer exercising for the time being the powers [of a Mamlatdar, of a Mahalkari, or of a Tahsildar or Naib Tahsildar,] [These words were substituted for the words 'of a Mamlatdar' of a Mukhtyarkar, or of a Mahalkari,' by Bombay 4 of 1958, Section

3(2)(ii).] and any other person who may be specially authorized by the [[(State)] [The words 'Provincial Government' were substituted for the words 'Governor in Council' by the Adaptation of Indian Laws Order in Council.] Government] to exercise the powers of a Mamlatdar under this Act; and(b)the words "plaintiff" and "defendant" shall include(i)a pleader duly appointed to act on behalf of such plaintiff or defendant, and(ii)the recognized agent of a plaintiff or defendant as defined in section 37 of the [Code of Civil Procedure.] [See now the Code of Civil Procedure, 1908 (Act 5 of 1908).]

4. Power to appoint Joint Mamlatdar.

- The [[State] [The words 'Provincial Government' were substituted for the words 'Governor in Council' by the Adaptation of Laws Order in Council.] Government] may, by notification in the [Official Gazette] [The words 'Official Gazette' were substituted for the words 'Bombay Government Gazette' by the Adaptation of Indian Laws Order in Council.], appoint in any taluka a Joint Mamlatdar under this Act who shall be invested with co-extensive powers and a concurrent jurisdiction with the Mamlatdar, except that he shall dispose of such suits only as he may receive from the Mamlatdar. Power of Mamlatdar to transfer suits to the Joint Mamlatdar. - (2) The Mamlatdar is hereby empowered to transfer to the Joint Mamlatdar for disposal any suit under this Act the plaint in which has been presented to the Mamlatdar under section 7, and to re-transfer to his own file any such suit, of which the Joint Mamlatdar is, owing to death, sickness or any other cause unable to dispose. Delegation of powers to Commissioner. - The [[State] [The words 'Provincial Government' were substituted for the words 'Governor in Council' by the Adaptation of Laws Order in Council.] Government] may delegate [its] [The word 'its' was substituted for the word 'his' by the Adaptation of Indian Laws Order in Council.] powers under sub-section (1) to [any officer not below the rank of Collector] [These words were substituted for the words 'the Commissioner' by Bombay 4 of 1958, Section 3(3).].

5. Powers of Mamlatdars' Courts.

(1)Every Mamlatdar shall preside over a court, which shall be called a Mamlatdars' Court, and which shall, subject to the provisions of sections 6 and 26, have power, within such territorial limits as may from time to time be [fixed by the State Government,] [These words, brackets and letters were substituted for the words 'fixed by the State Government to give immediate possession' by Bombay 66 of 1954, Section 2(1)(i).] -(a)to remove or cause to be removed any impediment, erected otherwise than under due authority of law, to the natural flow in a defined channel or otherwise of any surface water naturally rising in or falling on any land used for agriculture, grazing, trees or crops, on to any adjacent land, where such impediment causes or is likely to cause damage to the land used for such purpose or to any such grazing, trees or crops thereon;(b)to give immediate possession of any lands or premises used for agriculture or grazing, or trees, or crops, fisheries, or to restore the use of water from any well, tank, canal or water-course, whether natural or artificial used for agricultural purposes to any person who has been dispossessed or deprived thereof otherwise than by due course of law, or who has become entitled to the possession or restoration thereof by reason of the determination of any tenancy or other right of any other person, not being a person who has been a former owner or part-owner, within a period of twelve years before the institution of

the suit of the property or use claimed, or who is the legal representative of such former owner or part-owner: Provided that, if in any case the Mamlatdar considers it inequitable or unduly harsh [to remove or cause to be removed any such impediment or] [These words were inserted by Bombay 66 of 1954, Section 2(1)(ii).], to give possession of any such property or to restore any such use to a person who has become entitled thereto merely by reason of the determination of any such tenancy or other right, or if it appears to him that such case can be more suitably dealt with by a Civil Court, he may in his discretion refuse to exercise the power aforesaid, but shall record in writing his reasons for such refusal.

Power to issue injunction. - (2) The said Court shall also, subject to the same provisions, have power within the said limits, [where any impediment referred to in sub-section (1) is erected, or an attempt has been made to erect it, or] [These words, brackets and figures were inserted by Bombay 66 of 1954, Section 2(2)(a).], when any person is otherwise than by due course of law disturbed or obstructed, or when an attempt has been made so to disturb or obstruct any person, in the possession of any lands or premises used for agriculture or grazing, or trees, or crops, or fisheries, or in the use of water from any well, tank, canal or water-course, whether natural or artificial, used for agricultural purposes, or in the use of roads or customary ways thereto, to issue an injunction to the person [erecting or who has attempted to erect such impediment, or] [These words were inserted by Bombay 66 of 1954, Section 2(2)(b).] causing, or who has attempted to cause, such disturbance or obstruction, requiring him to refrain [from erecting or attempting to erect any such impediment or] [These words were inserted by Bombay 66 of 1954, Section 2(2)(c).], from causing or attempting to cause any further such disturbance or obstruction.

Suits to be filed within six months. - (3) No suit shall be entertained by a Mamlatdar's Court unless it is brought within six months from the date on which the cause of action arose.

Cause of action. - (4) The cause of action shall be deemed to have arisen on the date on which the [impediment to the natural flow of surface water or the] [These words were inserted by Bombay 66 of 1954, Section 2(3)(a).] dispossession, deprivation or determination, of tenancy or other right occurred, or on which the [impediment,] [These words were inserted by Bombay 66 of 1954, Section 2(3)(b).] disturbance or obstruction, or the attempted [impediment or] [These words were inserted by Bombay 66 of 1954, Section 2(3)(c).] disturbance or obstruction, first commenced.

Explanation. - The exercise by a joint owner of any right which he has over the joint property is not a dispossession, or disturbance of possession of the other joint owner or owners within the meaning of this section.

Illustration I. A lets B his field to cultivate for a specific period of one or more years. B refuses to resign possession after the expiration of that period. A can sue for possession in the Mamlatdar's Court at any time within 6 months from the date of the expiration of the said period, unless B is a person who has been a former owner or part-owner within a period of twelve years before the institution of the suit of the property, or who is the legal representative of such former owner or part-owner.

Illustration II. B is a yearly tenant of A, who gives him a notice to vacate, as he is bound to do [in accordance with the law relating to the termination of an annual tenancy] [These words were Substituted for the words and figures beginning with the words and figures 'under section 84' and ending with the words 'three months' by Bombay 4 of 1958, Section 3(4).] before the end of the then current year of tenancy. At the commencement of the next year B refuses to vacate. A can sue B in the Mamlatdar's Court at any time within six months from the commencement of that year, unless B is a person who has been a former owner or part-owner within a period of twelve years before the institution of the suit of the property, or who is the legal representative of such former owner or part-owner.

Illustration III. A allows B the use of water from his well, or from his

water-course, for a specific period, at the expiration of which B continues to take water from the well or water-course without A's consent. A may sue B in the Mamlatdar's Court at any time within six months from the expiration of the said period to obtain an injunction to stop B from taking the water, unless B is a person who has been a former owner or part-owner within a period of twelve years before the institution of the suit of the use of the water, or who is the legal representative of such former owner or part-owner, Illustration IV. A and B holds lands adjacent to a or similar artificial water-course which has hitherto been exclusively used by B. A draws water therefrom. B may sue in the Mamlatdar's Court, at any time within six months from the date on which A commences to take the water, for an injunction to prevent A from so doing.

6. Power of Collector to transfer suits.

- The Collector may, after due notice to the parties, by order in writing transfer any suit from any Mamlatdar's Court in his district to any other Mamlatdar's Court in his district, and the Mamlatdar's Court to which the suit is so transferred shall thereupon exercise jurisdiction in such suit; but any order issued to village-officers under section 21 shall be issued by the Mamlatdar to whom such village-officers are subordinate.

7. Suits commenced by plaintiff. Contents of plaintiff.

- All suits under this Act shall be commenced by a plaintiff, which shall be presented to the Mamlatdar in open Court by the plaintiff, and which shall contain the following particulars; -(a) the name, age, religion, caste, profession and place of abode of the plaintiff; (b) the name, age, religion, caste, profession and place of abode of the defendant; (bb) [the nature and situation of the impediment erected and the situation of the lands which are adjacent to each other, and the nature of the relief sought;] [This clause was inserted by Bombay 66 of 1954, Section 3.] (c) the nature and situation of the property of which possession for use is sought, or the nature of the injunction to be granted, as the case may be; (d) the date on which the cause of action arose; (e) the circumstances out of which the cause of action arose; and (f) a list of the plaintiff's documents, if any, and of his witnesses, if any, showing what evidence is required from each witness, and whether such witnesses are to be summoned to attend, or whether the plaintiff will produce them on the day and at the place to be fixed under section 14.

8. Informal petitions to be treated as plaintiffs.

- Where a petition not in the form of a plaintiff is presented to the Mamlatdar and the subject matter thereof appears to fall within the scope of section 5, the Mamlatdar shall explain to the person presenting the petition the nature of the relief afforded by this Act and shall inquire whether the petitioner desires to obtain relief thereby. If the petitioner expresses a desire so to obtain relief, the Mamlatdar shall endorse the desire on the petition which shall thereupon be deemed to be a plaintiff presented under section 7.

9. Examination of plaintiff on oath.

- Where the plaint does not contain the particulars specified in section 7 or is unnecessarily prolix, the Mamlatdar shall forthwith examine the plaintiff upon oath and ascertain from him such of the particulars specified in section 7 as are not clearly and correctly stated in the plaint and shall reduce the examination to writing in the form of an endorsement on or annexure to the plaint which shall thereupon be deemed to be part of the plaint. Where the plaintiff requires time to obtain any of the particulars specified in section 7, the Mamlatdar shall grant him such time as may under all the circumstances appear reasonable.

10. Plaint to be subscribed and verified.

- When the plaint is presented, and has, if necessary, been treated in the manner specified in section 9, the Mamlatdar shall require the plaintiff to subscribe and verify the plaint in his presence, in open Court, in the manner following, or to the like effect;-"I, A. B., the plaintiff, do declare that what is stated in this plaint is true to the best of my information and belief."

11. Endorsement by Mamlatdar.

(1)The Mamlatdar shall endorse the plaint to the effect that it was duly subscribed and verified.Procedure where plaintiff cannot write. - (2) Where the plaintiff cannot write, the verification may be written for him in open Court and he shall affix his mark to his name in token of the authenticity of the verification, and the Mamlatdar shall, in such case, record that the verification was made in his presence at the request of the plaintiff, and that his mark was so affixed.

12. Rejection of plaint.

- The Mamlatdar shall reject the plaint-(a)where the plaintiff declines to make a statement on oath under section 9; or(b)where the plaintiff is willing to make or has made a statement on oath under section 9, but fails to furnish the particulars specified in section 7 within the time fixed under section 9 or altogether; or(c)where it appears upon the face of the plaint,(i)that the property or use claimed is not one of the kind specified in section 5, or(ii)that the cause of action arose more than six months before the plaint was presented; or(d)where the plaintiff declines to subscribe or verify the plaint as required by sections 10 and 11.

13. Return of plaint.

- Where it appears to the Mamlatdar that the subject of the plaint is not within his jurisdiction, he shall return the plaint to be presented in the proper Court.

14. Procedure where plaint admissible.

(1)Where a plaint is admissible, the Mamlatdar shall receive and file it. He shall then fix a convenient day and place for the trial of the case, and shall issue, at the expense of the plaintiff, notice in the form of Schedule A to the defendant. He shall then require the plaintiff to appear with his documents, if any, and witnesses, if any, on the day and at the place fixed.(2)The date to be fixed for the trial of the case. shall not be earlier than ten days, nor later than fifteen days, from the day on which the notice is issued, except for sufficient reason to be recorded in writing by the Mamlatdar with his own hand.(3)The place to be fixed for the trial of the case may be in the Mamlatdar's office, or at or near the scene of dispute, or at any other spot that the Mamlatdar considers convenient to the parties.

15. Attendance of witnesses.

(1)Where either party requires any witness to be summoned to appear on the day and at the place fixed, the Mamlatdar shall issue a summons for that purpose.(2)The Mamlatdar may issue, after recording his reasons in writing, a warrant for the arrest of any such witness if at such time he fails to appear and the summons is proved to have been duly served in time to admit of appearing in accordance therewith and no reasonable excuse is offered for such failure.(3)The payment of the cost incurred in thus procuring the attendance of witnesses shall be regulated in accordance with the rules that may from time to time be in force in regard to the attendance of witnesses in Subordinate Civil Courts.

16. Where plaintiff makes default, plaint to be rejected with costs.

(1)Where the plaintiff fails to attend, or to produce his documents, if any, or to adopt measures to procure the attendance of his witnesses, if any, on the day and at the place fixed, the Mamlatdar shall reject the plaint with costs, whether the defendant appears or not, unless the defendant admits the claim. Where defendant does not appear, case to be heard ex-parte. - (2) Where the plaintiff attends as required by section 14, sub-section (1), but the defendant fails to attend, and the Mamlatdar is satisfied from the evidence before him that the notice has been duly served on the defendant and in sufficient time to enable the defendant to appear and answer on the day fixed in the notice, he shall proceed to hear and decide the plaint ex-parte: But case may be reheard on sufficient cause being shown. - Provided, firstly, that if either party satisfies the Mamlatdar at any time within thirty days from the date of the rejection of a plaint under sub-section (1), or of an ex-parte decision under sub-section (2), that he was prevented by some unavoidable circumstance from attending, or from producing his documents or from adopting measures to procure the attendance of his witnesses, as the case may be, it shall be lawful for the Mamlatdar to issue a notice in the form of Schedule B at the expense of the applicant to the opposite party and, if still satisfied after hearing the opposite party that the applicant was prevented as alleged, to re-hear the case at such time and place as he may then fix; or plaintiff may withdraw his suit. - Provided, secondly, that nothing in the foregoing provisions shall prevent the plaintiff from withdrawing his suit on payment of the defendant's costs.

17. When proceedings may be adjourned.

(1)Where, in the case mentioned in sub-section (2) of section 16, the Mamlatdar is not satisfied from the evidence before him that the notice has been duly served on the defendant, and in sufficient time to enable the defendant to appear and answer on the day fixed in the notice, he shall adjourn the trial of the case and issue a fresh notice under section 14, sub-section (1), to the defendant.(2)Where any witness who has been duly summoned, or for whose arrest a warrant has been issued under sub-section (2) of section 15, fails to attend on the day and at the place fixed, the Mamlatdar may, if he considers there is sufficient reason, after taking the evidence of those present, adjourn the hearing of the suit from time to time till the attendance of such witness can be enforced.(3)The Mamlatdar may, for any other sufficient reason to be recorded in writing, adjourn the trial of the case for such time as he thinks fit, but not ordinarily exceeding ten days.(4)The provisions of sections 15 and 16 shall apply in respect of any day to which the trial of the case may be adjourned under this section, as if such day were the day originally fixed for the trial.

18. Minor may be a party.

(1)A minor may sue or be sued, if he is represented by a natural or duly appointed guardian.Power to add parties. - (2) The Mamlatdar may, at any stage of the proceedings order that the name of any person to whom possession or enjoyment of the property or use claimed, or of any part thereof, may have been transferred, or the addition of whom as a party appears necessary in order to enable the Court effectually and completely to adjudicate upon the issues, be added as a plaintiff or defendant, as the circumstances of the case may require:Provided that no person shall be added as a plaintiff without his consent:Provided also that in respect of any person so added, not being a transferee pending the suit, the suit shall for the purposes of section 5, sub-section (3), be deemed to have been instituted on the day when his name was so added.Procedure in case of death of party. - (3) In case of the death of any party, while the suit is pending, -(i)if application is made within one month of such death, the Mamlatdar shall determine summarily who is the legal representative of the deceased party and shall enter on the record the name of such representative;(ii)if no such application is made, the suit shall abate(4)Where the Mamlatdar orders the name of any person to be added as a defendant or enters on the record the name of any person as the legal representative of a deceased defendant, the Mamlatdar shall issue to such person a notice as provided in section 14; and the trial shall proceed on the date fixed in such notice.

19. Points to be decided by Mamlatdar at hearing.

(1)On the day fixed, or on any day to which the proceedings may have been adjourned, the Mamlatdar shall, subject to the provisions of section 16, proceed to hear all the evidence that is then and there before him, [and to try the following issues, namely :- (aa)If the plaintiff avers that the natural flow of surface water from his land has been impeded by any erection raised by the defendant causing damage or likelihood of damage to the plaintiff's land or to any grazing, trees or crops thereon-(1)whether surface water flowed, in a defined channel or otherwise, naturally from plaintiff's land on to defendant's land;(2)whether the defendant erected any impediment to such flow, otherwise than under due authority of law;(3)whether such erection impeded such natural flow

of water within six months before the suit was filed;(4)whether such impediment has caused or is likely to cause damage to plaintiff's land or to any grazing, trees or crops thereon;](a)If the plaintiff avers that he has been unlawfully disposed of any property or deprived of any use-(1)whether the plaintiff or any person on his behalf or through whom he claims was in possession or enjoyment of the property or use claimed up to any time within six months before the suit was filed;(2)whether the defendant is in possession at the time of the suit, and, if so, whether he obtained possession otherwise than by due course of law;(b)if the plaintiff avers that he is entitled to possession of any property or restoration of any use by reason of the determination of any tenure or other right of the defendant in respect thereof-(1)whether the defendant is in possession of the property or in the enjoyment of the use by a right derived from the plaintiff or from any person through whom he claims;(2)whether such right has determined at any time within six months before the suit was filed;(3)whether the defendant is other than a person who has been a former owner or part-owner within a period of twelve years before the institution of the suit of the property or use claimed, and other than the legal representative of such former owner or part-owner;(c)if the plaintiff avers that he is still in possession of the property or in the enjoyment of the use, but that the defendant disturbs or obstructs, or has attempted to disturb or obstruct, him in his possession or use-(1)whether the plaintiff or any person in his behalf is actually in possession or enjoyment of the property or use claimed;(2)whether the defendant is disturbing or obstructing, or has attempted to disturb or obstruct, him in such possession or enjoyment;(3)whether such disturbance or obstruction, or such attempted disturbance or obstruction, first commenced within six months before the suit was filed.

Power of Mamlatdar to examine other witnesses and inspect property in disputes. - (2) The Mamlatdar may, after due notice to, and in the presence of, the parties summon and examine as a witness any person who has not been summoned or produced, and may call for and cause to be proved any document which has not been applied for or produced, by either of the parties, where he considers it expedient in the interests of justice so to do, and may, if he thinks fit, make a personal inspection of the property in dispute in the presence of, or after due notice to, the parties.[He shall without unnecessary delay record a memorandum after hearing the parties on the spot, if present, of any relevant facts observed at such inspection. The memorandum shall form part of the record of the case.] [These words were added by Bombay 11 of 1928, Section 2, First Schedule.]

Record of proceedings by Mamlatdar. - (3) The Mamlatdar shall with his own hand make or sign a memorandum of the substance of the evidence of each witness as the examination of the witness proceeds, and briefly record his reasons for his finding.

Orders to be passed by Mamlatdar upon decisions in favour of plaintiff and defendant. - (4) Where the Mamlatdar's finding upon the issues is in favour of the plaintiff, he shall make such order, not being in excess of the powers vested in him by section 5, as the circumstances of the case appear to him to require; and where his finding is in favour of the defendant, he shall dismiss the suit. In either case the costs of the suit, including the costs of execution, shall follow the decision.

20. Mamlatdar's order to be endorsed on plaint and read out in open Court.

- Every order of the Mamlatdar, whether for rejecting or returning a plaint or whether for allowing or disallowing a claim, shall be endorsed by the Mamlatdar on the plaint and shall be read out by him in open Court, either at once or on some future day of which due notice shall be given to the parties or their pleaders, and brief reasons for the order shall be placed by him on record.

21. Mamlatdar's decision how executed.

(1) Where the Mamlatdar's decision is for [removal of an impediment or for] [These words were inserted by Bombay 66 of 1954, Section 5(1)(a).] awarding possession or restoring a use, he shall give effect thereto by issuing such orders to the village-Officers, or to any subordinate under his control or otherwise, as he thinks fit; **Proviso as to growing crops.**:- Provided that, notwithstanding anything contained in this Act, where at the time when a decision is recorded by the Mamlatdar for [removal of the impediment erected on any land or for] [These words were inserted by Bombay 66 of 1954, section 5(1) (b).] awarding possession of any land, there is a crop on such land which has been sown by, or at the expense of, the defendant, and the Mamlatdar is satisfied that it has been so sown in good faith, the Mamlatdar may, and if the defendant makes an application for the purpose and furnishes sufficient security, or deposits in Court a sufficient sum, for the payment of the costs of the suit; shall pass an order staying delivery of possession of such land to the plaintiff seeking possession thereof, either-(a) until the plaintiff agrees to take the crop at a valuation, to be made under the orders of the Mamlatdar, according to the value of the crop at such time, including any instalments of the Government assessment which the defendant may have paid for the current year; or (b) where the plaintiff is unwilling to take the crop at such valuation until after the expiration of sufficient time for the crop to be gathered by the defendant. The amount of any valuation made under clause (a) of the proviso to this sub-section shall be paid to the defendant through the Mamlatdar, and shall be recoverable from the plaintiff as an arrear of land-revenue. **Mode of serving injunction.** - (2) Where the Mamlatdar's decision is for granting an injunction, he shall cause the same to be [prepared in the form of Schedule BB or C, as the case may be,] [These words and letters were substituted for the original by Bombay 66 of 1954, Section 5(2).] and shall deliver or tender the same then and there to the defendant, if present, or if the defendant is not present, shall send it to the village-officers, or to any subordinate under his control to be served upon the defendant. **Recovery of costs awarded.**:- (3) Where the Mamlatdar awards costs, such costs, together with the costs of execution, shall be recoverable from the party ordered to pay them as an arrear of land revenue. **Disobedience to an injunction how punishable.** - (4) Any person disobeying an injunction granted under sub-section (2) shall be punishable under section 188 of the [Indian Penal Code.] [Central Acts]

22. Possession to be given without prejudice to rights of parties.

- [Subject to the provisions of section 23, sub-section (2), the party in favour of whom the Mamlatdar issues an order for removal of an impediment or the party to whom the Mamlatdar gives possession or restores a use, or in whose favour an injunction is granted, shall continue to have the surface water upon his land flow unimpeded on to adjacent land or continue in possession or use, as the case may be, until otherwise decreed or ordered, or until ousted, by a competent Civil Court] [This portion was substituted for the original by Bombay 66 of 1954, Section 6.]: Provided, firstly, that nothing in this section shall prevent the party against whom the Mamlatdar's decision is passed from recovering by a suit in a competent Civil Court mesne profits for the time he has been kept out of possession of any property or out of enjoyment of any use: Provided, secondly, that in any subsequent suit or other proceeding in any Civil Court between the same parties, or other persons claiming under them the Mamlatdar's decision respecting the possession of any property or the

enjoyment of any use or respecting the title to or valuation of any crop dealt with under the proviso to sub-section (1) of section 21, shall not be held to be conclusive.

23. Bar of Appeal.

(1) There shall be no appeal from any order passed by a Mamlatdar under this Act. Collector's power to revise Mamlatdar's proceedings. - (2) But the Collector may call for and examine the record of any suit under this Act, and if he considers that any proceeding, finding or order in such suit is illegal or improper, may, after due notice to the parties, pass such order thereon, not inconsistent with this Act, as he thinks fit. Delegation to Collector's powers. - [(2A) The Collector may delegate the powers conferred on him by this section to any [Assistant Collector, Deputy Collector or Assistant Commissioner] [This sub-section was inserted by Bombay 24 of 1942, Section 2(a) read with Bombay 42 of 1947, Section 2.] subordinate to him;] [These words, brackets, letters, figures and punctuation marks were substituted for the original by Bombay 66 of 1954, Section 4.] Collector deemed to be a Court. - (3) Where the Collector, [Assistant Collector, Deputy Collector or Assistant Commissioner] [These words were substituted for the words 'Assistant Collector or Deputy Collector' by Bombay 4 of 1958, Section 3(5).] takes any proceedings under this Act he shall be deemed to be a Court under this Act.

24. [Powers of the Court of the Judicial Commissioner of Sind.]

Omitted by the Adaptation of Laws Order, 1950.

25. Punishment for verification of false plaint.

- Any plaintiff subscribing and verifying any plaint under this Act which he either knows or believes to be false, or does not believe to be true, in any material point, shall be deemed to have committed an offence punishable under section 193 of the [Indian Penal Code] [Central Acts.].

26. Bar of certain suits.

- No suit shall lie under this Act-(a)[against Government or against any Government officer] [These words were substituted for the words 'against the Crown or against any servant of the Crown' by the Adaptation of Laws Order, 1950.] in respect of any act done or purporting to be done by any such officer in his official capacity, except where acting as a manager or guardian duly constituted under any law for the time being in force; or (b) in respect of [any removal of any impediment or of] [These words were inserted by Bombay 66 of 1954, section 7.] any dispossession, recovery of possession or disturbance of possession, that has been the subject of previous proceedings, to which the plaintiff or his predecessor in interest was a party, under this Act, or in a Civil Court, or under Chapter XII of the Code of Criminal Procedure, 1898.

27. [Repeals and savings. [[This section stand unmodified as per the Schedule to the Maharashtra Adaptation of Laws (State and Concurrent Subjects Order), 1960.

This section was inserted by Bombay 4 of 1958, section 3(6).]- On the commencement of this Act in that part of the State of Bombay to which it is extended by the Mamlatdar's Courts (Extension) Act, 1957, the Saurashtra Mamlatdar's Courts Ordinance, 1948, and the Mamlatdars' Courts Act, 1906, as modified and extended to the Kutch area of the State of Bombay, shall, from such commencement in that part, stand repealed: Provided that notwithstanding any such repeal, anything done or action taken (including any appointments made, any Mamlatdars' Courts constituted, territorial limits thereof fixed, orders made by such Courts, proceedings pending before such Courts or before the Collector or other authority, and delegations made by the Government or the Collector) by or under the provisions of the laws so repealed shall, in so far as such thing done or action taken is not inconsistent with the provisions of this Act, be deemed to be done, taken, appointed, constituted, fixed, pending, or made under the provisions of this Act as if this Act had then been in force; and accordingly, all such proceedings pending before any such Court or Collector or other authority shall be continued and disposed of in accordance with the provisions of this Act.]

A

Form of Notice to be issued to the Defendant Under Section 14No. of SuitIn the of the Mamlatdar ofPlaintiff;Defendant.To Defendant - (name, age, religion, caste, profession and place of abode).Whereas (here enter the name, age, religion, caste, profession and place of abode of the plaintiff) has instituted a suit in this Court against you (here state the particulars of the plaint):You are hereby summoned to appear in this Court at the village of _____ in person or by duly authorized agent on the day of at O'clock _____ m., to answer the above-named plaintiff; and as the plaint will be finally disposed of on that day, you must adopt measures to produce your documents and procure the attendance of your witnesses at the hour and place above fixed; and you are hereby required to take notice that, in default of such appearance at the before mentioned time and place, the suit will be heard and determined in the absence of yourself and your agent.Dated this _____ day of _____ 20____(Signed)MamlatdarNote :- If you require your witnesses to be summoned by the Court, you should make an application to that effect to the Court without delay, so as to allow of the service of the summonses a reasonable time before the within mentioned date.

B

Form of Notice to be issued Under Section 16No. of SuitIn the of the Mamlatdar of Plaintiff;Defendant.To Plaintiff (or Defendant, as the case may be),Whereas, in the suit above specified, instituted in this Court by _____ the Court ordered on the _____ day of _____ last that, _____ and the said plaintiff (or defendant, as the case may be), has under date the _____ day of _____, applied to this Court to re-hear the case on the grounds that(here state the grounds):This is to give you notice that the said application will be heard and determined on the _____ day of _____ at _____ o'clock _____ m., at the village of _____,

and you are hereby required to take notice that in default of your appearance personally or by agent at the said time and place, the application will be heard and determined in your absence and, if granted, a time and place for re-hearing the suit will then be fixed. Dated this-----day of-----20(Signed)Mamlatdar.[Schedule BB] [Schedule BB was inserted by Bombay 66 or 1954, Section 8.]Form of Injunction to be issued Under Section 21, Sub-Section (2)No. of SuitIn the of the Mamlatdar of Plaintiff;Defendant.To DefendantWhereas in the suit above specified, the Court has this day found that you have impeded (or that you have attempted to impede) the natural flow of surface water naturally rising in or falling on the plaintiff's undermentioned property by (here describe the property and the impediment erected, or attempted to be erected found proved):You are hereby prohibited from erecting or attempting to erect any impediment (if necessary set forth the particular kind of impediment which the defendant is enjoined not to erect) to the natural flow of surface water from the said plaintiff's said property on to your property otherwise than under authority of a competent Civil Court. Dated this _____ day of _____ 20(Signed)Mamlatdar.

C

Form of Injunction to be issued Under Section 21, Sub-Section (2)No. of SuitIn the of the Mamlatdar of Plaintiff;Defendant.To DefendantWhereas in the suit above specified the Court has this day found that you have disturbed or obstructed (or that you have attempted to disturb or obstruct) the said plaintiff in this possession of the under-mentioned property (or enjoyment of the under-mentioned use of water or use of roads, or otherwise as the case may be) by (here describe the disturbance or obstruction or attempted disturbance or obstruction found proved):You are hereby prohibited from making any further attempt to disturb or obstruct (if necessary set forth the particular kind of disturbance or obstruction which the defendant is enjoined not to repeat) the said plaintiff in his possession of the said property (or otherwise as the case may be) otherwise than in execution of the decree of a competent Civil Court. Dated this _____ day of _____ 20(Signed)Mamlatdar.

NotificationsG.N., R.D., No. MCA. 1557/10873-R, dated 28th February, 1958 (B.G., Part IV-B, page 114) - In exercise of the powers conferred by sub-section (3) of section 1 of the Mamlatdars' Courts Act, 1906 (Bombay II of 1906), the Government of Bombay hereby appoints the 1st day of February 1958, as the date on which that Act shall come into force in that part of the State of Bombay to which it is extended by the Mamlatdars' Courts (Extension) Act, 1957 (Bombay IV of 1958).G.N., ID., No. 7788, dated 9th December, 1902 (B.G., Part I, page 2053) - In exercise of the powers conferred by section 3, clause (1), and by section 4 of the Mamlatdars' Courts Act, 1876 (Bombay Act III of 1876), the Governor in Council is pleased to direct, in supersession of the Notification of the Government of Bombay in the judicial Department, No.157, dated the 9th January 1900, except so far as it relates to the taluka of Shirgonda and Karjat, that the Mamlatdars of the marginally noted talukas in district of Ahmednagar shall have the powers of a Mamlatdar described in section 4 of the said Act within the territorial limits of their respective revenue charges, and to withdraw the powers conferred by the marginally noted Notification of the Government of Bombay in the Judicial Department upon the persons specially authorised therein to exercise the powers of a Mamlatdar under the said Act.

- 1. Nagar**
- 2. Parner**
- 3. Jamkhed**
- 4. Shevgaon**
- 5. Nevasa**
- 6. Rahuri**
- 7. Kopargaon**
- 8. Sangamner**
- 9. Akola**

- 1. No. 6457 of 13th October 1902.**
- 2. No. 6556 of 17th October 1902.**
- 3. No. 6456 of 13th October 1902.**
- 4. No. 3626 of 5th June 1902.**
- 5. No. 7628 of 26th November 1901.**
- 6. No. 8285 of 10th December 1900.**
- 7. No. 6560 of 17th October 1902.**
- 8. No. 8285 of 10th December 1900.**
- 9. No. 8284 of 10th December 1900.**

G. N., J. D., No. 8141, dated 23rd December, 1902 (B. G., Part I, page 2125) - In exercise of the powers conferred by section 3 clause (1), and by section 4 of the Mamlatdars' Courts Act, 1876 (Bombay Act III of 1876), the Governor in Council is pleased to direct, in supersession of so much of Government Notification No. 157, dated the 9th January 1900, as relates to the talukas of Shrigonda and Karjat, that the Mamlatdars of the said Talukas in the district of Ahmednagar shall have the

powers of a Mamlatdar described in section 4 of the said Act within the territorial limits of their respective revenue charges, and to withdraw the powers conferred by the marginally noted Government Notifications upon the persons specially authorised therein to exercise the powers of a Mamlatdar under the said Act.No. 2417 dated the 4th April 1900.No. 7072, dated the 10th November 1902.G. N., J. D., No. 8142, dated 23rd December, 1902 (B. G., Part I, page 2125) - In exercise of the powers conferred by section 3 clause (1), and by section 4 of the Mamlatdars' Courts Act, 1876 (Bombay Act III of 1876), the Governor in Council is pleased to direct, in supersession of Government Notifications No. 3931 and No. 3932, dated the 18th June 1902, that the Mamlatdar, taluka Karmala in the district of Sholapur shall have the powers of a Mamlatdar described in section 4 of the said Act within the territorial limits of revenue charges, and to withdraw the powers conferred by the Government Notification No. 3930, dated the 18th June 1902 upon the persons specially authorised therein to exercise the powers of a Mamlatdar under the said Act.G. N., R. D., No. 6847/51, dated 31st March, 1953 (B. G., Part I, page 6584) - In exercise of the powers conferred by sub-section (1) of section 4 of the Mamlatdars' Courts Act, 1906 (Bombay II of 1906) the Government of Bombay is pleased to appoint the officers specified in column 1 of the schedule hereto appended to be Joint Mamlatdars in the talukas of the East Khandesh District specified against them in column 2 of the said schedule.

Schedule 4

Designation of officer	Taluka
1	2
Aval Karkun, Yawal	Yawal Taluka
Aval Karkun, Jamner	Jamner Taluka
Aval Karkun, Chopda	Chopda Taluka
Aval Karkun, Jalgaon	Jalgaon Taluka
Aval Karkun, Amalner	Amalner Taluka
Aval Karkun, Raver	Raver Taluka

G. N., J. D., No. 3136, dated 3rd May, 1899 (B. G., Part I, page 551) - Under the provisions of section 4 of the Mamlatdars' Courts Act, III of 1876, the Governor in Council is pleased to order the transfer of the villages and Cantonment named below from the territorial limits of the jurisdiction under the aforesaid Act of the Mamlatdar, taluka Haveli in the Poona District, to those of the City Mamlatdar, Poona, with effect from the 1st June 1899:-

1. [* * *] [See G.N. of 13-4-1937.]

2. Wanauri

3. Ghorpadi

4. [* * *] [See G.N. of 13-4-1937.]
5. [* *] [See G.N. of 13-4-1937.]
6. Aundh
7. Yerandavane
8. Bhamburda
9. Mundhava
10. [* *] [See G.N. of 13-4-1937.]
11. Sangvne Haveli
12. Munjeri
13. [* *] [See G.N. of 13-4-1937.]
14. Bopodi
15. [* *] [See G.N. of 13-4-1937.]
16. [* *] [See G.N. of 13-4-1937.]
17. [* *] [See G.N. of 13-4-1937.]
18. [* *] [See G.N. of 13-4-1937.]
19. Yerrowda
20. Mali
21. Parawati
22. [* *] [See G.N. of 13-4-1937.]

23. [* *] [See G.N. of 13-4-1937.]

24. [* *] [See G.N. of 13-4-1937.]

25. [* *] [See G.N. of 13-4-1937.]

26. [* *] [See G.N. of 13-4-1937.]

27. Poona Cantonment

28. Kirkee

G. N., J. D., No. 963, dated 7th February, 1900 (B. G., Part I, page 238) - Under the provision of section 4 of the Mamlatdars' Courts Act, 1876, the Governor in Council is pleased, in supersession of any previous orders, to fix the limits of the Headquarter Station of taluka Ankleshwar as the territorial limits of the jurisdiction of the Mamlatdar of taluka. G. N., H D., No. 8918/3-III, dated 13th April, 1937 (B. G., Part I, page 818) - In exercise of the powers conferred by sub-section (1) of section 5 of the Mamlatdars' Courts Act, 1906 (Bombay II of 1906), and in modification of Government Notification in the Judicial Department, No. 3136, dated the 3rd May, 1899, the Government of Bombay is pleased to exclude the following villages from the territorial limits of jurisdiction under the said Act of the Mamlatdar, Poona City, and include them within the territorial limits of jurisdiction of the Mamlatdar of the Haveli Taluka, with effect from the 15th May, 1937 :-

1. Kothrud

2. Ambegaon Khurd and Budruk

3. Katraj

4. Kondve Khurd and Budruk

5. Sangvi-Haveli

6. Dapodi

7. Mahomedwadi

8. Hadapsar

9. Vadgaonsheri 10. Bopkhel

11. Hingne Budruk and Khurd

12. Pashan

13. Kalas

14. Narhe, and

15. Dhankavadi

G. N., H D., No. 8918/3-V, dated 7th May, 1937 (B. G., Part I, page 1139) - In exercise of the powers conferred by sub-section (1) of section 5 of the Mamlatdars' Courts Act, 1906 (Bombay II of 1906), and in supersession of Government Notifications, Judicial Department, No. 874, 875, 876, dated the 3rd February, 1902, the Government of Bombay is pleased to include the following villages in the Niphad and Yeola Talukas and Chandor Mahal within the territorial limits of jurisdiction under the said Act of the Mamlatdars of the Niphad and Yeola Talukas and Mahalkari of Chandor Mahal respectively in the Nasik District, namely:-Niphad-Taluka

1. Vinchur

2. Saykhede

3. Takli

4. Kotumgaon

5. Pimpalgaon-Najik

6. Nimgaon Vakda

Yeola Taluka

1. Nimgaon Madhe

2. Ambegaon

- 3. Dhulgaon**
- 4. Somthan Des**
- 5. Babhulgaon**
- 6. Nyaharkhede**
- 7. Desmane**
- 8. Pimpalgaon Lep**
- 9. Paregaon**
- 10. Dhanakwadi**
- 11. Adgaon Repal**
- 12. Valadgaon**
- 13. Manori**
- 14. Satare**
- 15. Nevurgaon**
- 16. Kasarkhede**

Chandor Mahal

- 1. Konkankhede**
- 2. Mesankhede**
- 3. Dongorgaon**
- 4. Dhodambe**